

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ANDREW CLAY,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
ALEXANDER CABALLERY, SHIELD #21951, 70TH PCT.
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICERS JOHN AND JIM DOE (WHOSE
NAMES ARE PRESENTLY UNKNOWN), BOTH OF THE
70TH PCT., INDIVIDUALLY AND AS POLICE OFFICERS,Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is the
place where cause of action
arose.Defendants.
-----X**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 17 day of June, 2019.....
EMDIN & RUSSELL LLP.Royce Russell, Esq.,
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer Alexander Caballero
Shield #21951,
c/o 70th Precinct
154 Lawrence Avenue
Brooklyn, NY 11230

Police Officer John Doe
Identity Unknown
c/o 70th Precinct
154 Lawrence Avenue
Brooklyn, NY 11230

Police Officer Jim Doe
Identity Unknown
c/o 70th Precinct
154 Lawrence Avenue
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ANDREW CLAY,

Plaintiff,

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**VERIFIED
COMPLAINT**
Index #:

THE CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT, POLICE OFFICER
ALEXANDER CABALLERY, SHIELD # 21951,
70TH PCT., INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICERS JOHN AND JIM DOE
(WHOSE NAMES ARE PRESENTLY UNKNOWN),
BOTH OF THE 70TH PCT., INDIVIDUALLY AND
AS POLICE OFFICERS,

Defendants.
-----X

The plaintiff, Andrew Clay, as and for a Verified Complaint filed by his Attorneys, Emdin & Russell, LLP., complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the defendant, "City", including its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of June, 2018, Police Officer Alexander Caballery, hereinafter referred to as "Caballery", was employed as a Police Officer by the "City" and/or "NYPD", and assigned to the 70th precinct and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.
4. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of

June, 2018, Police Officer John Doe, whose identity is presently unknown, hereinafter referred to as “John”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to the 70th precinct and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.

5. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of June, 2018, Police Officer Jim Doe, whose identity is presently unknown, hereinafter referred to as “Jim”, was employed as Police Officers by the “City” and/or “NYPD”, and assigned to the 70th precinct and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.
6. Andrew Clay, hereinafter referred to as “plaintiff” or “Clay” at all relevant times hereunder, was a resident of Kings County.
7. On June 17, 2018, at approximately 9:00 p.m. - 9:30 p.m., the plaintiff was lawfully attending a memorial BBQ at or near the location of 529 East 22nd Street in the County of Kings within the State of New York, hereinafter referred to as the “location”.
8. Clay was at said memorial celebrating the life of Isaac an acquaintance who died in a fire.
9. During the memorial, the Defendants arrived and requested the lowering of the music and the removal of double parked cars. Clay did not possess a car nor was he in charge of the playing of music.
10. Defendants also ordered the memorial cease at 10:00 p.m.
11. Clay informed the Defendants that the gathering was in celebration of the life of Isaac, who died in a tragic fire.
12. Clay then asked the Defendants would the Officers act in this manner if the memorial happened in/on Eastern Parkway. Clay further stated the Defendants would want people to show support if it happen to his family.
13. Clay’s statements were reflective of the racial bias in policing within Kings County.
14. Immediately after making these statements, the Defendants forcibly picked Clay off his feet, slammed and arrested Clay.
15. Clay was battered and a victim of excessive force as the Defendants injured Clay’s shoulder and unnecessarily tightly handcuffed Clay.
16. Clay suffered injury to his shoulder and wrists.
17. Clay was processed, fingerprinted, photographed and imprisoned until June 18, 2018.

18. During his detention Clay was illegally searched and falsely charged with Disorderly Conduct and Obstruction of Governmental Administration in the Second Degree.
19. At all relevant times herein, John Doe was present assisted and/or witnessed said conduct and failed to intervene, stop, or mitigate it.
20. At all relevant times herein, Jim Doe was present assisted and/or witnessed said conduct and failed to intervene, stop, or mitigate it.
21. Clay was eventually Arraigned pursuant to Docket CR-028566-18KN.
22. All charges against Clay were dismissed at Arraignments on June 18, 2019.
23. The Accusatory Instrument, and/or Criminal Complaint, was signed by "Caballery" for the purpose of prosecuting Clay.
24. The complaint contained false statements by "Caballery" and/or "John".
25. Clay, as a result of the Defendants misconduct, suffers from extreme anxiety and emotional and mental anguish.
26. Clay was humiliated in front of friends because he exercises his First Amendment Rights pursuant to U.S. Constitution and New York State Constitution.
27. That notice of the plaintiff's claim and notice of intention to sue for damages as which set forth the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City" and the Corporation Counsel of the City of New York. Said Notice included a Notice to Preserve Evidence.
28. That a 50(h) hearing was held on February 22, 2019.
29. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.
30. That this action is commenced within one year and 90 days after the cause of action arose.
31. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.
32. That this action is commenced within one year and 90 days after the cause of action arose.

33. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY
AGAINST THE DEFENDANTS**

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "33" with the same force and effect as if more fully and at length set forth herein.
35. That on June 17, 2018 at approximately 9:00 p.m. - 9:30 p.m. at the "location" the plaintiff was, without provocation and while not committing any crime was lifted off the ground slammed and handcuffed by "Caballery" and/or "John", with the assistance and in the presence of Jim Doe.
36. That on June 17, 2018 at approximately 9:00 p.m. - 9:30 p.m. inside the 70th pct. the plaintiff was unlawfully detained, arrested, imprisoned and ignored when complained about his medical well-being.
37. The plaintiff was handcuffed during the entire detention.
38. Said act(s) occurred while in the performance of the defendants' duties as police officers.
39. That all said contact was committed without plaintiff's permission or consent.
40. That the contact was unlawful, excessive and without privilege.
41. That all contact committed by defendants through their agents, servants, and/or employees, including the above named defendants, was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical injury.
42. That the above acts committed by the defendants constituted a battery of Clay and/or assault and/or excessive use of force.
43. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
FOR FALSE IMPRISONMENT AGAINST THE DEFENDANTS

44. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "43" with the same force and effect as if more fully and at length set forth herein.
45. That the defendants, their agents, servants and/or employees acted with intent to imprison the plaintiff.
46. That the defendants were present and knew that the plaintiff did not commit the crimes of which he was accused, yet nevertheless arrested and imprisoned the plaintiff or remained silent to his arrest.
47. That the plaintiff, without his consent or just cause, was taken into custody and held against his will until he was released on June 18, 2018 in the evening.
48. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
FOR FALSE ARREST AGAINST THE DEFENDANTS

49. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if more fully and at length set forth herein.
50. That the defendants, their agents, servants and/or employees acted with intent to arrest the plaintiff.
51. That the plaintiff, without his consent or just cause was taken into custody, arrested, and held against his will until June 18, 2018.
52. That the defendants knew that they did not have probable cause to arrest the plaintiff.
53. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR EXCESSIVE FORCE

54. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "53" with the same force and effect as if more fully and at length set forth herein.
55. That as stated hereinabove, the defendants engaged in excessive force in that they, forcibly lifted Clay up and slammed Clay, thus using force that was beyond the minimum degree of force necessary to subdue or control the plaintiff.
56. That some of the aforementioned contact occurred while the plaintiff was in handcuffs.
57. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988, BY "CABALLERY", "JOHN" AND
"JIM" FOR VIOLATION OF 4TH AMENDMENT FOR ILLEGAL SEIZURE AND USE
OF FORCE AND USE OF EXCESSIVE FORCE

58. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "57" with the same force and effect as if more fully and at length set forth herein.
59. That at all times hereinafter mentioned, and on June 17, 2019, defendant "Caballery", "John" and "Jim" were employed by the defendant The City of New York, and/or The New York City Police Department, and were acting under the color of his/their official capacity and each of their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.
60. That at all times, "Caballery" and "John" were acting pursuant to orders, directives, training, supervision and guidelines from defendant, The City of New York.
61. That at all times, "Jim Doe" was acting pursuant to orders, directives, training, supervision and guidelines from defendant, The City of New York.
62. That during all times hereinbefore and hereinafter mentioned, "Caballery", "John" and/or "Jim" acted under color and pretense of law, to wit: under color of the statutes,

ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

63. That on the date, at the time and location set forth in this Complaint at the vicinity of 529 East 22nd Street, Brooklyn, New York, the plaintiff was lawfully exercising his First Amendment right to question and/or object to police actions.
64. That the plaintiff was not interfering with their official functions.
65. Upon information and belief, “Caballery” and “John” were acting with, or in the presence and with the assent of “Jim”, used physical force and/or excessive force against the plaintiff in that the plaintiff was dragged, struck and punched.
66. That as a direct proximate result of the aforementioned actions the plaintiff was illegally seized and subjected to physical injury and excessive force.
67. That by reason of the aforesaid, the plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTH CAUSE OF ACTION:

ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS

UNDER 42 U.S.C. SECTIONS 1983 AND 1988, BY “CABALERY” “JOHN” AND “JIM”
FOR VIOLATION OF 1ST AMENDMENT RIGHTS

68. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "67" with the same force and effect as if more fully and at length set forth herein.
69. That at all times hereinafter mentioned, and on June 16, 2018, defendants “Caballery”, “John” and “Jim” were employed by the defendant The City of New York, and/or The New York City Police Department, and each was acting under the color of his official

capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.

70. That at all times set forth herein; “Caballery”, “John” and “Jim” were acting pursuant to orders, directives, training, supervision and guidelines from defendant, The City of New York.
71. That during all times hereinbefore and hereinafter mentioned, “Caballery”, “John” and “Jim” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City of New York and/or New York City Police Department and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First and Fourteenth Amendment to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
72. That on the date, time and place stated in this Complaint herein, the plaintiff was subjected to a physical attack by, upon information and belief “Caballery”, “John” in the presence of “Jim” in an attempt to punish the plaintiff for objecting to police misconduct.
73. That as a direct proximate result of the defendants’ actions the plaintiff was physically injured.
74. That by reason of the aforesaid, the plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 and 1988, BY “JIM” FOR FAILING TO
INTERVENE AND MITIGATE AND FOR VIOLATING PLAINTIFF’S RIGHT TO
EQUAL PROTECTION UNDER THE LAW

75. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "74" with the same force and effect as if more fully and at length set forth herein.
76. That at all times hereinafter mentioned, and on June 17, 2018, defendant “Jim” was

employed by the defendant The City of New York, and/or The New York City Police Department, and each was acting under the color of his/her/their official capacity and his/her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.

77. That at all times, “Jim” was acting pursuant to orders, directives, training, supervision and guidelines from defendant, The City of New York.
78. That during all times hereinbefore and hereinafter mentioned, “Jim” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that he/she/they acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
79. That all New York City Police Officer have and at all relevant times set forth herein, had a duty, pursuant to Police Patrol Guidelines to use a minimum degree of force.
80. That all New York City Police Officer have and at all relevant times set forth herein, had a duty, pursuant to Police Patrol Guidelines to intervene, stop and/or mitigate officers when they observe the use of excessive force.
81. That all New York City Police Officer have and at all relevant times set forth herein, had a duty, pursuant to Police Patrol Guidelines to report misconduct of a fellow police officer.
82. Upon information and belief, on June 17, 2018 “Jim” observed “Caballery” and/or “John” illegally seize the plaintiff.
83. Upon information and belief, “Jim” observed “Caballery” and/or “John” use and/or assisted in the use of excessive force, had the ability to stop the use of excessive force and failed to do so.
84. That upon information and belief, the defendant “Jim” failed to report said misconduct of his fellow officers, and/or failed to provide the plaintiff with equal protection under the law.
85. That as a direct proximate result of the defendants’ actions, the plaintiff was subjected to

physical injury.

86. That by reason of the aforesaid, the plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each named defendant, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH CAUSE OF ACTION:

ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS

**UNDER 42 U.S.C. SECTIONS 1983 and 1988, AGAINST "CABALLERY", "JOHN" AND
"JIM" FOR FALSE ARREST**

87. That plaintiff repeats, reiterates and realizes each and every allegation contained in paragraphs marked "1" through "86" with the same force and effect as if more fully and at length set forth herein.
88. The actions of the defendant officers violated the plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful arrest and false imprisonment.
89. That by reason of the aforesaid, the plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988, under each cause of action against each named defendant, and such other relief as to the court may seem just and proper.

WHEREFORE, THE PLAINTIFF SEEKS JUDGMENT on the First through the Eight causes of action for compensatory damages, punitive damages on the federal causes of action under 42 USC 1983, 1988 as to the named defendant police officers, legal fees pursuant to 42 USC 1988 and any other appropriate statute or at common law, expert fees, costs, interest at the legal rate, disbursements, as requested against the named defendants and such other and further relief as to the court seems just and proper.

DATED: New York, New York
June 17, 2019



ROYCE RUSSELL, ESQ.
Emdin & Russell, LLP.
Attorney for the Plaintiff
499 Seventh Avenue, 12N
New York, New York 10018
212-683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

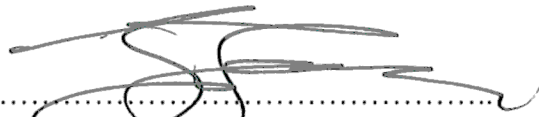
That I am an attorney associated with the law firm of Royce Russell, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 17, 2019


.....
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANDREW CLAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT, POLICE
OFFICER ALEXANDER CABALLERY, SHIELD # 21951, 70TH PCT., INDIVIDUALLY
AND AS A POLICE OFFICER, POLICE OFFICERS JOHN AND JIM DOE (WHOSE NAMES
ARE PRESENTLY UNKNOWN), BOTH OF THE 70TH PCT., INDIVIDUALLY AND
AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

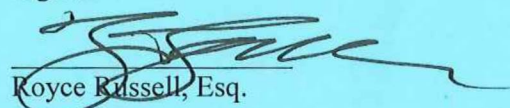
LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To: City of New York	Police Officer Alexander Caballery	Police Officer Jim Doe
c/o Office of the Corporation	Shield #21951,	Identity Unknown
Counsel	c/o 70th Precinct	c/o 70th Precinct
100 Church Street	154 Lawrence Avenue	154 Lawrence Avenue
New York, NY 10007	Brooklyn, NY 11230	Brooklyn, NY 11230
The New York City Police	Police Officer John Doe	
Department	Identity Unknown	
1 Police Plaza	c/o 70th Precinct	
New York, New York 10038	154 Lawrence Avenue	
	Brooklyn, NY 11230	

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 17, 2019

Signature



Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on